

THE SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
1 & 2 Vict. c. 23.	The Parsonages Act, 1838	Section seven. Section eight. Section nine.
1 & 2 Vict. c. 29.	The Parsonages (Amendment) Act, 1838.	The whole Act.
2 & 3 Vict. c. 49.	Church Building Act, 1839	Section fourteen (so far as unrepealed).
1 & 2 Geo. 5. c. 29.	Parsonages Act, 1911	The whole Act.

No. 2.

A MEASURE passed by the National Assembly
of the Church of England.

To provide for the disannexation from the Archdeaconry of Surrey of the Canonry in Winchester Cathedral now annexed thereto; for the suspension of the said Canonry; and for the foundation of Canonries in the Cathedral Churches of Guildford and Portsmouth and the endowment thereof out of the corporate property of the Dean and Chapter of Winchester.

[20th March 1930.]

1.—(1) The canonry in the cathedral church of Winchester which was by an Order of Her late Majesty Queen Victoria in Council made the twenty-ninth day of November, eighteen hundred and sixty-five, and published in the London Gazette of the first day of December, Disannexa-
tion and
suspension
of canonry in
Winchester
Cathedral.

eighteen hundred and sixty-five, annexed to the archdeaconry of Surrey, shall be disannexed therefrom and shall thereupon be suspended.

(2) The disannexation and suspension of the said canonry shall take effect upon the passing of this Measure if the archdeaconry of Surrey be then vacant, but if the said archdeaconry be not then vacant shall take effect upon the first vacation thereafter of the said archdeaconry or at such earlier date as the archdeacon holding the said archdeaconry at the passing of this Measure shall, with the approval of the Bishop of Guildford, consent to the disannexation and suspension taking effect, such consent and approval to be certified by a writing signed by the archdeacon and the bishop, which shall be deposited in the diocesan registry of Winchester.

3 & 4 Vict.
c. 113.

(3) The said canonry shall remain suspended as if it had been suspended under section ten of the Ecclesiastical Commissioners Act, 1840, and the number of canons of the cathedral church of Winchester, which by that Act was fixed at five, shall be reduced to four.

Transfer
of endow-
ments.

2. Upon the suspension of the said canonry the tithe rent-charge and capital sum described in the Schedule to this Measure, now vested in and held by Queen Anne's Bounty in trust for the dean and chapter of Winchester, or in case of the redemption before the suspension of the said canonry, of the whole or any part of the said tithe rent-charge then the proceeds of redemption in place of the tithe rent-charge redeemed, shall be held by Queen Anne's Bounty upon trust for the Ecclesiastical Commissioners for the purposes hereinafter mentioned.

Trusts of
transferred
endow-
ments.

3. The net income arising from the said tithe rent-charge and any proceeds of redemption or upon the extinguishment of the said tithe rent-charge from the capital held by Queen Anne's Bounty in respect thereof shall be paid by Queen Anne's Bounty to the Ecclesiastical Commissioners and shall be applied by them as to seven-tenths thereof as income of one or more canonries in the cathedral church of Guildford founded in pursuance of this Measure, and as to three-tenths thereof as income of one or more canonries in the cathedral church of Portsmouth so founded. From the date of the suspension of

the said canonry in the cathedral church of Winchester until the whole of the income becomes so applicable so much thereof as is not so applicable shall be accumulated by the Commissioners, and the accumulations in respect of the seven-tenth parts and three-tenth parts respectively shall be held by the Commissioners as a capital fund for the augmentation of the incomes of the canonries in the said cathedral churches of Guildford and Portsmouth.

4.—(1) The Ecclesiastical Commissioners shall, after consultation with the Bishops of Guildford and Portsmouth respectively, frame a scheme or schemes for the foundation of the canonries referred to in the last preceding section, and the said schemes shall fix the number of the canonries to be so founded in each of the cathedral churches of Guildford and Portsmouth and determine the income to be assigned to each of them, shall assign the patronage of every canonry so founded to the bishop of the diocese in the cathedral church of which the canonry is founded, and shall define the duties which the incumbent of each canonry is to perform in the cathedral church of Guildford or Portsmouth as the case may be and in the administration of the diocese, and may provide that every such canon shall be a member of the provisional chapter of his diocese established by the Diocese of Winchester (Division) Measure, 1923.

Foundation
of canonries
in the
cathedral
churches of
Guildford
and Ports-
mouth.

(2) A scheme framed under this section shall, if approved by the bishop or bishops of the diocese or dioceses to the cathedral church or churches of which it relates, be submitted by the Ecclesiastical Commissioners to His Majesty in Council, who may by order confirm the scheme, and the scheme when so confirmed shall have full force and effect in law as if contained in this Measure.

An Order in Council made in pursuance of this Measure shall be published in the London Gazette, and shall be registered in the registry of the diocese or each of the dioceses to the cathedral church of which it relates.

5. This Measure may be cited as the Archdeaconry Short title.
of Surrey Measure, 1930.

THE SCHEDULE.

1. All those the tithe rent-charges arising in the parish of Titchfield in the county of Southampton amounting, as appears from the collecting lists of the Dean and Chapter of Winchester on the 1st day of October, 1929, to £1,498 11s. 8d. per annum (being part of the tithe rent-charges by the apportionment confirmed by the Tithe Commissioners for England and Wales on the 31st day of December, 1839, made payable to the Impropiator as varied by subsequent altered apportionments), which are now held by Queen Anne's Bounty in trust for the Dean and Chapter of Winchester, subject to all charges and obligations affecting the said tithe rent-charges and in particular, in exoneration of all other property of the Dean and Chapter of Winchester, to all and every obligation in respect of the said tithe rent-charges for chancel maintenance, and to the payment of an annual sum of £150 to the incumbent of the benefice of Titchfield aforesaid and of another annual sum of £50 to the incumbent of the benefice of Sarisbury with Swanwick in the said county of Southampton.

2. The capital sum in the hands of Queen Anne's Bounty representing all sums with the accumulations thereof under the provisions of the Tithe Act, 1925, carried to the sinking fund established under that Act in respect of the said tithe rent-charges amounting to £1,498 11s. 8d. per annum.

No. 3.

A MEASURE passed by the National Assembly
of the Church of England.

To enable marriages to be solemnized in any
church which is the usual place of worship
of the persons to be married or of either of
them. [20th March 1930.]

Banns may
be published
and
marriages
solemnized
in a church
which is the
usual place

1.—(1) Subject to the provisions of this Measure, banns of matrimony may be published in the manner prescribed by law in any parish church or public chapel (being a public chapel in which banns of matrimony may now or hereafter be lawfully published) which is the usual place of worship of the persons to be married or of either of them although neither of such persons dwells